

**Form 320**

for use in the Province of Ontario

# Confirmation of Co-operation and Representation Buyer/Seller

**BUYER:** ..... Brittany Anne Keating ..... & ..... Mitchell Kurt Noack .....

**SELLER:** ..... Paul Anthony Federici .....

 For the transaction on the property known as: 14 ..... Beausoleil ..... Drive ..... Penetanguishene ..... ON ..... L9M 0V8 .....
**DEFINITIONS AND INTERPRETATIONS:** For the purposes of this Confirmation of Co-operation and Representation:

"Seller" includes a vendor, landlord, lessor or a prospective seller, vendor, landlord or lessor and "Buyer" includes a purchaser, tenant, lessee or a prospective buyer, purchaser, tenant or lessee and "sale" includes a lease, and "Agreement of Purchase and Sale" includes an Agreement to Lease. Commission shall be deemed to include other remuneration.

The following information is confirmed by the undersigned salesperson/broker representative(s) of the Brokerage(s). If a Co-operating Brokerage is involved in the transaction, the Brokerages agree to co-operate, in consideration of, and on the terms and conditions as set out below.

**DECLARATION OF INSURANCE:** The undersigned salesperson/broker representative(s) of the Brokerage(s) hereby declare that he/she is insured as required by the Trust in Real Estate Services Act, 2002 (TRESA).

**1. SELLER BROKERAGE (Single Representation)**

- a) ☒ The Seller Brokerage or a Designated Representative of the Seller Brokerage represents the interests of the Seller in this transaction. It is further understood and agreed that:
- 1) ☒ Neither the Seller Brokerage nor a Designated Representative of the Seller Brokerage is representing the Buyer and has not entered into a representation agreement with the Buyer.
  - 2) ☐ The Seller Brokerage or a Designated Representative of the Seller Brokerage is providing assistance to the Buyer and the Buyer is a self-represented party.
  - 3) ☐ The Seller client and Buyer client are each separately represented by different designated representatives of the same Brokerage and there is no multiple representation.

 Additional comments and/or disclosures by Seller Brokerage:
   
.....
   
.....
**2. SELLER BROKERAGE (Multiple Representation)**

- a) ☐ The Seller Brokerage has entered into a Representation Agreement with the Buyer and there is Multiple Representation.
- b) ☐ The Designated Representative who represents the Seller also represents the Buyer and there is Multiple Representation.

 Additional comments and/or disclosures by Seller Brokerage: (e.g., The Seller Brokerage represents more than one Buyer offering on this property.)
   
.....
   
.....
**3. PROPERTY SOLD BY BUYER BROKERAGE**

- a) ☐ The Brokerage or a Designated Representative of the Brokerage represents the Buyer and the Brokerage will be paid by the Buyer directly.
- b) ☐ The Brokerage or a Designated Representative of the Brokerage represents the Buyer and the Brokerage will be paid according to the Commission Agreement entered into between the Buyer and the Seller.

**4. CO-OPERATING BROKERAGE**

- a) ☒ **CO-OPERATING BROKERAGE – REPRESENTATION:**
- 1) ☒ The Co-operating Brokerage or a Designated Representative of the Co-operating Brokerage represents the interests of the Buyer in this transaction.
- b) ☒ **CO-OPERATING BROKERAGE – COMMISSION:**
- 1) ☒ The Seller Brokerage will pay the Co-operating Brokerage the commission as indicated in the MLS® information for the property in the amount of ..... 2.5% ..... to be paid from the amount paid by the Seller to the Seller Brokerage.  
(Commission As Indicated In MLS® Information)
  - 2) ☐ The Co-operating Brokerage will be paid as follows:
   
.....
   
.....

 Additional comments and/or disclosures by Co-operating Brokerage: (e.g., The Co-operating Brokerage represents more than one Buyer offering on this property.)
   
.....
   
.....
**INITIALS OF BUYER(S)/SELLER(S)/BROKERAGE REPRESENTATIVE(S) (Where applicable)**
**BUYER**
**CO-OPERATING/BUYER BROKERAGE**
**SELLER**
**SELLER BROKERAGE**

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Commission will be payable as described above, plus applicable taxes.

COMMISSION TRUST AGREEMENT: If the above Co-operating Brokerage is receiving payment of commission from the Seller Brokerage, then the agreement between Seller Brokerage and Co-operating Brokerage further includes a Commission Trust Agreement, the consideration for which is the Co-operating Brokerage procuring an offer for a trade of the property, acceptable to the Seller. This Commission Trust Agreement shall be subject to and governed by the MLS® rules and regulations pertaining to commission trusts of the Seller Brokerage's local real estate board, if the local board's MLS® rules and regulations so provide. Otherwise, the provisions of the OREA recommended MLS® rules and regulations shall apply to this Commission Trust Agreement. For the purpose of this Commission Trust Agreement, the Commission Trust Amount shall be the amount noted in Section 4 above. The Seller Brokerage hereby declares that all monies received in connection with the trade shall constitute a Commission Trust and shall be held, in trust, for the Co-operating Brokerage under the terms of the applicable MLS® rules and regulations.

**SIGNED BY THE BROKER/SALESPERSON REPRESENTATIVE(S) OF THE BROKERAGE(S) (Where applicable)**

**RE/MAX Georgian Bay Realty Ltd**  
 (Name of Co-operating/Buyer Brokerage)  
**833 KING STREET MIDLAND ON L4R 4L1**  
 Tel.: (705) 526-9366 Fax: (705) 526-7120  
 (Authorized to bind the Co-operating/Buyer Brokerage) (Date) **Mar 4/26**  
**MONICA McCREADY**  
 (Print Name of Salesperson/Broker/Broker of Record)

**FARIS TEAM REAL ESTATE BROKERAGE**  
 (Name of Seller Brokerage)  
**443 Bayview Drive Barrie ON L4N 8Y2**  
 Tel.: (705) 797-8485 Fax: (705) 797-8486  
 2026/03/04 | 4:46 PM EST  
 (Authorized to bind the Seller Brokerage) (Date)  
**Mark Faris/ Jonathan Wallace**  
 (Print Name of Salesperson/Broker/Broker of Record)

**CONSENT FOR MULTIPLE REPRESENTATION**

The Buyer and Seller confirm that they have previously consented to Multiple Representation.  
 The Buyer and Seller consent with their initials Multiple Representation for this transaction.

INITIALS OF BUYER(S)

INITIALS OF SELLER(S)

**ACKNOWLEDGEMENT**

I have received, read, and understand the above information.

Signed by: **Mar 4, 2026 | 11:11 AM PST** **2026/03/04 | 4:46 PM EST**  
 (Signature of Buyer) **Brittany Keating** (Date) **Paul Federici**  
 (Signature of Seller) **Paul Anthony Federici** (Date)  
 (Signature of Buyer) **Mitchell Noack** (Date) **March 04/26**  
 (Signature of Seller) (Date)



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for use in the Province of Ontario

This Agreement of Purchase and Sale dated this 4 day of March 2026

**BUYER:** ..... **Brittany Anne Keating** & **Mitchell Kurt Noack** ....., agrees to purchase from  
(Full legal names of all Buyers)

**SELLER:** ..... Paul Anthony Federici .....  
 (Full legal names of all Sellers) ....., the following

### REAL PROPERTY:

Address 14 Beausoleil Drive Penetanguishene ON L9M 0V8

fronting on the ..... east ..... side of ..... Beausoleil .....

in the ..... Town of ..... Penetanguishene, County of Simcoe

and having a frontage of 44.24 Feet more or less by a depth of 114.18 Feet more or less

and legally described as  
LOT 45, PLAN 51M1171 SUBJECT TO AN EASEMENT FOR ENTRY AS IN SC1806519 TOWN OF  
PENETANGUISHENE

|                                                                         |                                             |                         |                  |
|-------------------------------------------------------------------------|---------------------------------------------|-------------------------|------------------|
| PF                                                                      | <del>Six Hundred Thirty Thousand</del>      | <del>\$600,000.00</del> |                  |
| (Legal description of land including easements not described elsewhere) |                                             | <del>\$616,000.00</del> | (the "property") |
|                                                                         | <del>Six Hundred Thirty Five Thousand</del> | <del>\$640,000.00</del> |                  |

**PURCHASE PRICE:**

~~Six Hundred Forty Thousand~~ ~~\$635,000.00~~

~~Five Hundred Eighty-Five Thousand~~ 14 N ~~\$630,000.00~~ Dollars

Six Hundred Twenty-Five Thousand  \$625,000.00 

**DEPOSIT:** Buyer submits ..... upon acceptance                       
(Herewith/Upon Acceptance/as otherwise described in this Agreement)

Ten Thousand ..... Dollars (CDN\$) ..... 10,000.00

by negotiable cheque payable to ..... **Faris Team Real Estate Brokerage** ..... "Deposit Holder" to be held in trust pending completion or other termination of this Agreement and to be credited toward the Purchase Price on completion. For the purposes of this Agreement, "Upon Acceptance" shall mean that the Buyer is required to deliver the deposit to the Deposit Holder within 24 hours of the acceptance of this Agreement. The parties to this Agreement hereby acknowledge that, unless otherwise provided for in this Agreement, the Deposit Holder shall place the deposit in trust in the Deposit Holder's non-interest bearing Real Estate Trust Account and no interest shall be earned, received or paid on the deposit.

**Buyer agrees to pay the balance as more particularly set out in <sup>PP</sup>Schedule A attached.**

SCHEDULE(S) A. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100, B 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100 attached hereto form(s) part of this Agreement.

**1. IRREVOCABILITY:** This offer shall be irrevocable by \_\_\_\_\_ until \_\_\_\_\_ on the \_\_\_\_\_.

day of March 2026, after which time, if not accepted, this offer shall be null and void and the deposit shall be returned to the Buyer in full without interest.

2. **COMPLETION DATE:** This Agreement shall be completed by no later than 6:00 p.m. on the 7 day of April

20 .....<sup>26</sup> Upon completion, vacant possession of the property shall be given to the Buyer unless otherwise provided for in this Agreement.

INITIALS OF BUYER(S):

**INITIALS OF SELLER(S):**

**3. NOTICES:** The Seller hereby appoints the Listing Brokerage as agent for the Seller for the purpose of giving and receiving notices pursuant to this Agreement. Where a Brokerage (Buyer's Brokerage) has entered into a representation agreement with the Buyer, the Buyer hereby appoints the Buyer's Brokerage as agent for the purpose of giving and receiving notices pursuant to this Agreement. **The Brokerage shall not be appointed or authorized to be agent for either the Buyer or the Seller for the purpose of giving and receiving notices where the Brokerage represents both the Seller and the Buyer (multiple representation) or where the Buyer or the Seller is a self-represented party.** Any notice relating hereto or provided for herein shall be in writing. In addition to any provision contained herein and in any Schedule hereto, this offer, any counter-offer, notice of acceptance thereof or any notice to be given or received pursuant to this Agreement or any Schedule hereto (any of them, "Document") shall be deemed given and received when delivered personally or hand delivered to the Address for Service provided in the Acknowledgement below, or where a facsimile number or email address is provided herein, when transmitted electronically to that facsimile number or email address, respectively, in which case, the signature(s) of the party (parties) shall be deemed to be original.

FAX No.: ..... (For delivery of Documents to Seller) FAX No.: ..... (For delivery of Documents to Buyer)

Email Address: ..... jonathan@faristeam.ca ..... Email Address: ..... monicamccready@gmail.com .....  
(For delivery of Documents to Seller) (For delivery of Documents to Buyer)

**4. CHATELS INCLUDED:**  
Fridge, Stove, Dishwasher, Clothes Washer, Clothes Dryer, Existing Lighting Fixtures, Existing Window Coverings, ~~On Demand Water Heating System, Water Softening System~~, all as viewed on March 3, 2026.

Initial Initial  
MN PF

Unless otherwise stated in this Agreement or any Schedule hereto, Seller agrees to convey all fixtures and chattels included in the Purchase Price free from all liens, encumbrances or claims affecting the said fixtures and chattels.

**5. FIXTURES EXCLUDED:**  
None.

**6. RENTAL ITEMS (Including Lease, Lease to Own):** The following equipment is rented and **not** included in the Purchase Price. The Buyer agrees to assume the rental contract(s), if assumable:

~~None.~~

On Demand Water Heating System, water Softening System  
Reliance \$84.93/month

Initial Initial  
MN PF

PF

The Buyer agrees to co-operate and execute such documentation as may be required to facilitate such assumption.

**7. HST:** If the sale of the property (Real Property as described above) is subject to Harmonized Sales Tax (HST), then such tax shall be included in ..... the Purchase Price. If the sale of the property is not subject to HST, Seller agrees to certify on or before closing, that the sale of the property is not subject to HST. Any HST on chattels, if applicable, is not included in the Purchase Price.  
(included in/in addition to)

INITIALS OF BUYER(S):

MN PF

INITIALS OF SELLER(S):

PF



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8. **TITLE SEARCH:** Buyer shall be allowed until 6:00 p.m. on the 16th day of March, 2026, (Requisition Date) to examine the title to the property at Buyer's own expense and until the earlier of: (i) thirty days from the later of the Requisition Date or the date on which the conditions in this Agreement are fulfilled or otherwise waived or; (ii) five days prior to completion, to satisfy Buyer that there are no outstanding

work orders or deficiency notices affecting the property, and that its present use (single family residential) may be lawfully continued and that the principal building may be insured against risk of fire. Seller hereby consents to the municipality or other governmental agencies releasing to Buyer details of all outstanding work orders and deficiency notices affecting the property, and Seller agrees to execute and deliver such further authorizations in this regard as Buyer may reasonably require.

9. **FUTURE USE:** Seller and Buyer agree that there is no representation or warranty of any kind that the future intended use of the property by Buyer is or will be lawful except as may be specifically provided for in this Agreement.
10. **TITLE:** Provided that the title to the property is good and free from all registered restrictions, charges, liens, and encumbrances except as otherwise specifically provided in this Agreement and save and except for (a) any registered restrictions or covenants that run with the land providing that such are complied with; (b) any registered municipal agreements and registered agreements with publicly regulated utilities providing such have been complied with, or security has been posted to ensure compliance and completion, as evidenced by a letter from the relevant municipality or regulated utility; (c) any minor easements for the supply of domestic utility or telecommunication services to the property or adjacent properties; and (d) any easements for drainage, storm or sanitary sewers, public utility lines, telecommunication lines, cable television lines or other services which do not materially affect the use of the property. If within the specified times referred to in paragraph 8 any valid objection to title or to any outstanding work order or deficiency notice, or to the fact the said present use may not lawfully be continued, or that the principal building may not be insured against risk of fire is made in writing to Seller and which Seller is unable or unwilling to remove, remedy or satisfy or obtain insurance save and except against risk of fire (Title Insurance) in favour of the Buyer and any mortgagee, (with all related costs at the expense of the Seller), and which Buyer will not waive, this Agreement notwithstanding any intermediate acts or negotiations in respect of such objections, shall be at an end and all monies paid shall be returned without interest or deduction and Seller, Listing Brokerage and Co-operating Brokerage shall not be liable for any costs or damages. Save as to any valid objection so made by such day and except for any objection going to the root of the title, Buyer shall be conclusively deemed to have accepted Seller's title to the property.
11. **CLOSING ARRANGEMENTS:** Where each of the Seller and Buyer retain a lawyer to complete the Agreement of Purchase and Sale of the property, and where the transaction will be completed by electronic registration pursuant to Part III of the Land Registration Reform Act, R.S.O. 1990, Chapter L4 and the Electronic Registration Act, S.O. 1991, Chapter 44, and any amendments thereto, the Seller and Buyer acknowledge and agree that the exchange of closing funds, non-registrable documents and other items (the "Requisite Deliveries") and the release thereof to the Seller and Buyer will (a) not occur at the same time as the registration of the transfer/deed (and any other documents intended to be registered in connection with the completion of this transaction) and (b) be subject to conditions whereby the lawyer(s) receiving any of the Requisite Deliveries will be required to hold same in trust and not release same except in accordance with the terms of a document registration agreement between the said lawyers. The Seller and Buyer irrevocably instruct the said lawyers to be bound by the document registration agreement which is recommended from time to time by the Law Society of Ontario. Unless otherwise agreed to by the lawyers, such exchange of Requisite Deliveries shall occur by the delivery of the Requisite Deliveries of each party to the office of the lawyer for the other party or such other location agreeable to both lawyers.
12. **DOCUMENTS AND DISCHARGE:** Buyer shall not call for the production of any title deed, abstract, survey or other evidence of title to the property except such as are in the possession or control of Seller. If requested by Buyer, Seller will deliver any sketch or survey of the property within Seller's control to Buyer as soon as possible and prior to the Requisition Date. If a discharge of any Charge/Mortgage held by a corporation incorporated pursuant to the Trust And Loan Companies Act (Canada), Chartered Bank, Trust Company, Credit Union, Caisse Populaire or Insurance Company and which is not to be assumed by Buyer on completion, is not available in registrable form on completion, Buyer agrees to accept Seller's lawyer's personal undertaking to obtain, out of the closing funds, a discharge in registrable form and to register same, or cause same to be registered, on title within a reasonable period of time after completion, provided that on or before completion Seller shall provide to Buyer a mortgage statement prepared by the mortgagee setting out the balance required to obtain the discharge, and, where a real-time electronic cleared funds transfer system is not being used, a direction executed by Seller directing payment to the mortgagee of the amount required to obtain the discharge out of the balance due on completion.
13. **INSPECTION:** Buyer acknowledges having had the opportunity to inspect the property and understands that upon acceptance of this offer there shall be a binding agreement of purchase and sale between Buyer and Seller. **The Buyer acknowledges having the opportunity to include a requirement for a property inspection report in this Agreement and agrees that except as may be specifically provided for in this Agreement, the Buyer will not be obtaining a property inspection or property inspection report regarding the property.**
14. **INSURANCE:** All buildings on the property and all other things being purchased shall be and remain until completion at the risk of Seller. Pending completion, Seller shall hold all insurance policies, if any, and the proceeds thereof in trust for the parties as their interests may appear and in the event of substantial damage, Buyer may either terminate this Agreement and have all monies paid returned without interest or deduction or else take the proceeds of any insurance and complete the purchase. No insurance shall be transferred on completion. If Seller is taking back a Charge/Mortgage, or Buyer is assuming a Charge/Mortgage, Buyer shall supply Seller with reasonable evidence of adequate insurance to protect Seller's or other mortgagee's interest on completion.

INITIALS OF BUYER(S):

MNI

INITIALS OF SELLER(S):

PF



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- 15. PLANNING ACT:** This Agreement shall be effective to create an interest in the property only if Seller complies with the subdivision control provisions of the Planning Act by completion and Seller covenants to proceed diligently at Seller's expense to obtain any necessary consent by completion.
- 16. DOCUMENT PREPARATION:** The Transfer/Deed shall, save for the Land Transfer Tax Affidavit, be prepared in registrable form at the expense of Seller, and any Charge/Mortgage to be given back by the Buyer to Seller at the expense of the Buyer. If requested by Buyer, Seller covenants that the Transfer/Deed to be delivered on completion shall contain the statements contemplated by Section 50(22) of the Planning Act, R.S.O.1990.
- 17. RESIDENCY:** (a) Subject to (b) below, the Seller represents and warrants that the Seller is not and on completion will not be a non-resident under the non-residency provisions of the Income Tax Act which representation and warranty shall survive and not merge upon the completion of this transaction and the Seller shall deliver to the Buyer a statutory declaration that Seller is not then a non-resident of Canada; (b) provided that if the Seller is a non-resident under the non-residency provisions of the Income Tax Act, the Buyer shall be credited towards the Purchase Price with the amount, if any, necessary for Buyer to pay to the Minister of National Revenue to satisfy Buyer's liability in respect of tax payable by Seller under the non-residency provisions of the Income Tax Act by reason of this sale. Buyer shall not claim such credit if Seller delivers on completion the prescribed certificate.
- 18. ADJUSTMENTS:** Any rents, mortgage interest, realty taxes including local improvement rates and unmetered public or private utility charges and unmetered cost of fuel, as applicable, shall be apportioned and allowed to the day of completion, the day of completion itself to be apportioned to Buyer.
- 19. PROPERTY ASSESSMENT:** The Buyer and Seller hereby acknowledge that the Province of Ontario has implemented current value assessment and properties may be re-assessed on an annual basis. The Buyer and Seller agree that no claim will be made against the Buyer or Seller, or any Brokerage, Broker or Salesperson, for any changes in property tax as a result of a re-assessment of the property, save and except any property taxes that accrued prior to the completion of this transaction.
- 20. TIME LIMITS:** Time shall in all respects be of the essence hereof provided that the time for doing or completing of any matter provided for herein may be extended or abridged by an agreement in writing signed by Seller and Buyer or by their respective lawyers who may be specifically authorized in that regard.
- 21. TENDER:** Any tender of documents or money hereunder may be made upon Seller or Buyer or their respective lawyers on the day set for completion. Money shall be tendered with funds drawn on a lawyer's trust account in the form of a bank draft, certified cheque or wire transfer using the Lynx high value payment system as set out and prescribed by the *Canadian Payments Act* (R.S.C., 1985, c. C-21), as amended from time to time.
- 22. FAMILY LAW ACT:** Seller warrants that spousal consent is not necessary to this transaction under the provisions of the Family Law Act, R.S.O.1990 unless the spouse of the Seller has executed the consent hereinafter provided.
- 23. UFFI:** Seller represents and warrants to Buyer that during the time Seller has owned the property, Seller has not caused any building on the property to be insulated with insulation containing urea formaldehyde, and that to the best of Seller's knowledge no building on the property contains or has ever contained insulation that contains urea formaldehyde. This warranty shall survive and not merge on the completion of this transaction, and if the building is part of a multiple unit building, this warranty shall only apply to that part of the building which is the subject of this transaction.
- 24. LEGAL, ACCOUNTING AND ENVIRONMENTAL ADVICE:** The parties acknowledge that any information provided by the brokerage is not legal, tax or environmental advice.
- 25. CONSUMER REPORTS:** The Buyer is hereby notified that a consumer report containing credit and/or personal information may be referred to in connection with this transaction.
- 26. AGREEMENT IN WRITING:** If there is conflict or discrepancy between any provision added to this Agreement (including any Schedule attached hereto) and any provision in the standard pre-set portion hereof, the added provision shall supersede the standard pre-set provision to the extent of such conflict or discrepancy. This Agreement including any Schedule attached hereto, shall constitute the entire Agreement between Buyer and Seller. There is no representation, warranty, collateral agreement or condition, which affects this Agreement other than as expressed herein. For the purposes of this Agreement, Seller means vendor and Buyer means purchaser. This Agreement shall be read with all changes of gender or number required by the context.
- 27. ELECTRONIC SIGNATURES:** The parties hereto consent and agree to the use of electronic signatures pursuant to the *Electronic Commerce Act*, 2000, S.O. 2000, c17 as amended from time to time with respect to this Agreement and any other documents respecting this transaction.
- 28. TIME AND DATE:** Any reference to a time and date in this Agreement shall mean the time and date where the property is located.

INITIALS OF BUYER(S):

MN

INITIALS OF SELLER(S):

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**29. SUCCESSORS AND ASSIGNS:** The heirs, executors, administrators, successors and assigns of the undersigned are bound by the terms herein.

SIGNED, SEALED AND DELIVERED in the presence of:

IN WITNESS whereof I have hereunto set my hand and seal:

(Witness)

Signed by:

(Buyer) **Brittany Keating**

Mar 4, 2026 | 11:11 AM PST

(Seal)

(Date)

(Witness)

(Buyer) **Mitchell Noack**

(Seal)

(Date)

I, the Undersigned Seller, agree to the above offer. I hereby irrevocably instruct my lawyer to pay directly to the brokerage(s) with whom I have agreed to pay commission, the unpaid balance of the commission together with applicable Harmonized Sales Tax (and any other taxes as may hereafter be applicable), from the proceeds of the sale prior to any payment to the undersigned on completion, as advised by the brokerage(s) to my lawyer.

SIGNED, SEALED AND DELIVERED in the presence of:

IN WITNESS whereof I have hereunto set my hand and seal:

(Witness)

**Paul Federici**

(Seller) **Paul Anthony Federici**

(Seal)

(Date)

(Witness)

(Seller)

(Seal)

(Date)

**SPOUSAL CONSENT:** The undersigned spouse of the Seller hereby consents to the disposition evidenced herein pursuant to the provisions of the Family Law Act, R.S.O. 1990, and hereby agrees to execute all necessary or incidental documents to give full force and effect to the sale evidenced herein.

(Witness)

(Spouse)

(Seal)

(Date)

**CONFIRMATION OF ACCEPTANCE:** Notwithstanding anything contained herein, I confirm this Agreement with all changes both typed and written was finally accepted by all parties at ..... this ..... day of ....., 20.....

(a.m./p.m.)

**Paul Federici**  
(Signature of Seller or Buyer)

### INFORMATION ON BROKERAGE(S)

Listing Brokerage **FARIS TEAM REAL ESTATE BROKERAGE** (705) 797-8485  
(Tel.No.)

**Mark Faris/ Jonathan Wallace**

(Salesperson/Broker/Broker of Record Name)

Co-op/Buyer Brokerage **RE/MAX Georgian Bay Realty Ltd** (705) 526-9366  
(Tel.No.)

**MONICA MCCREADY**

(Salesperson/Broker/Broker of Record Name)

### ACKNOWLEDGEMENT

I acknowledge receipt of my signed copy of this accepted Agreement of Purchase and Sale and I authorize the Brokerage to forward a copy to my lawyer.

2026/03/05 | 1:41 PM EST

**Paul Federici**

(Seller) **Paul Anthony Federici**

(Date)

(Seller)

(Date)

Address for Service .....

(Tel. No.)

Seller's Lawyer .....

Address .....

Email .....

(Tel. No.)

(Fax. No.)

I acknowledge receipt of my signed copy of this accepted Agreement of Purchase and Sale and I authorize the Brokerage to forward a copy to my lawyer.

(Buyer) **Brittany Keating**

(Date)

(Buyer) **Mitchell Noack**

(Date)

Address for Service .....

(Tel. No.)

Buyer's Lawyer .....

Address .....

Email .....

(Tel. No.)

(Fax. No.)

### FOR OFFICE USE ONLY

### COMMISSION TRUST AGREEMENT

To: Co-operating Brokerage shown on the foregoing Agreement of Purchase and Sale:

In consideration for the Co-operating Brokerage procuring the foregoing Agreement of Purchase and Sale, I hereby declare that all moneys received or receivable by me in connection with the Transaction as contemplated in the MLS® Rules and Regulations of my Real Estate Board shall be receivable and held in trust. This agreement shall constitute a Commission Trust Agreement as defined in the MLS® Rules and shall be subject to and governed by the MLS® Rules pertaining to Commission Trust.

DATED as of the date and time of the acceptance of the foregoing Agreement of Purchase and Sale.

Acknowledged by:

(Authorized to bind the Listing Brokerage)

(Authorized to bind the Co-operating Brokerage)



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## Schedule A

### Agreement of Purchase and Sale

# Form 100

for use in the Province of Ontario

This Schedule is attached to and forms part of the Agreement of Purchase and Sale between:

BUYER: ..... Brittany Anne Keating ..... & ..... Mitchell Kurt Noack ..... and

SELLER: Paul Anthony Federici

for the purchase and sale of 14 Beausoleil Drive Penetanguishene

ON L9M 0V8 dated the 4 day of March 2026

Buyer agrees to pay the balance as follows:

The Buyer agrees to pay the balance of the Purchase Price, subject to adjustments, to the Seller on completion of this transaction, with funds drawn on a lawyer's trust account in the form of a bank draft, certified cheque or wire transfer using the Lynx high value payment system as set out and prescribed by the Canadian Payments Act (R.S.C., 1985, c. C-21) as amended from time to time.

This Offer is conditional upon the Buyer arranging, at the Buyer's own expense, a new first Charge/Mortgage, insurance, ~~and inspection of the subject property by a home inspector, and the obtaining of a report~~ satisfactory to the Buyer in the Buyer's sole and absolute discretion. Unless the Buyer gives notice in writing delivered to the Seller personally or in accordance with any other provisions for the delivery of notice in this Agreement of Purchase and Sale or any Schedule thereto not later than 6:00 PM on the seventh business day (excluding Saturdays, Sundays, and Statutory Holidays in the province of Ontario) following acceptance of this Offer, that these conditions are fulfilled, this Offer shall be null and void and the deposit shall be returned to the Buyer in full without deduction. The Seller agrees to provide access to the property for the purpose of any inspections required for the fulfillment of these conditions. These conditions are included for the benefit of the Buyer and may be waived at the Buyer's sole option by notice in writing to the Seller as aforesaid within the time period stated herein.

~~The Seller shall, at the Seller's own expense, buyout the hot water heater rental and the water softening system rental, and provide receipts for said buyouts delivered to the Buyer prior to the last date set for examining title.~~

~~The Seller agrees to provide to the Buyer, if in the Seller's possession, a copy of an existing survey, all building plans, mechanical drawings, any other plans relating to the subject property, all warranties and service manuals applicable to any equipment or chattels included in the purchase price, and delivered to the Buyer upon completion of this transaction. None Available~~

The Seller represents and warrants that the chattels, fixtures, systems and equipment as included in this Agreement of Purchase and Sale, including but not limited to the heating and air conditioning equipment, all appliances, light fixtures, and all other items, will be in good working order and free from all liens and encumbrances on completion. Further, the Seller represents and warrants that during the Seller's ownership of the property there has been no known damage to the foundation, roof or otherwise due to water leakage or flooding, and no known water leakage or flooding currently occurs. The Parties agree that these representations and warranties shall survive and not merge on completion of this transaction, but apply only to the state of the property at completion of this transaction.

Upon completion, the Seller agrees to leave any and all keys and/or codes used to access the home and mailbox, the garage door opener remote(s), and to leave the home in a clean and broom-swept condition and remove from the premises all debris and any items not included in this Agreement of Purchase and Sale.

The Buyer shall have the right to visit the property two (2) further times prior to completion, provided that 24-hour notice is given to the Seller's Agent. The Seller agrees to provide access to the property for the purpose of these agent-attended visits, and further agrees to vacate the property for the duration of these visits.

This form must be initialled by all parties to the Agreement of Purchase and Sale.

INITIALS OF BUYER(S):

INITIALS OF SELLER(S):





# Schedule B

## Agreement of Purchase and Sale

### Form 105

for use in the Province of Ontario

This Schedule is attached to and forms part of the Agreement of Purchase and Sale between:

**BUYER:** Brittany Anne Keating & Mitchell Kurt Noack

....., and

**SELLER:** Paul Anthony Federici

for the property known as 14 Beausoleil Drive, Penetanguishene, ON, L9M 0V8

..... dated the 4 day of March, 2026

The parties to this agreement hereby acknowledge and agree that the deposit holder, Faris Team Real Estate Brokerage, shall place the deposit funds into its interest-bearing Real Estate Trust Account in accordance with Section 27 of the Real Estate and Business Brokers Act 2002, which earns interest at the rate of prime less 2.8% per annum. The parties acknowledge that any and all interest earned on the deposit funds shall be retained by Faris Team Real Estate Brokerage.

The Buyer agrees that the deposit shall be in the form of either a bank draft, money order, certified cheque or wire transfer into the Brokerages Trust account.

In the event of a Mutual Release or for Excess Funds, the deposit will be returned after the full bank clearing period. The period will start the next banking day after receipt and deposit of the deposit funds. For bank drafts and wire transfer, the period is five (5) banking days, for others, the period is ten (10) banking days.

~~Pursuant to the Personal Information Protection and Electronic Documents Act (Privacy Act), we the Seller and Buyer understand that Faris Team Real Estate Brokerage requires our permission to advertise the sale of the subject property once it has been sold firm. In initialing below, it is agreed to by all parties to this Agreement of such advertising which could include but not limited to the disclosure of the following information: address, sale price, list price, photos and length of time the property was listed for sale, provided such is done in accordance with the respective Real Estate Board, Real Estate Council of Ontario and the Federal Privacy Act mentioned here.~~

PF

This form must be initialled by all parties to the Agreement of Purchase and Sale.

INITIALS OF BUYER(S):

MN

INITIALS OF SELLER(S):

PF



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